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POLITICS OF EUROPEAN INTEGRATION: CLASSROOM EXERCISE

Judicial Politics: A Mock CJEU Appeal (Commission v Meta)

A 53-minute moot-court simulation of an appeal to the Court of Justice on Digital Services Act and Digital Markets Act enforcement, with Advocate General opinions and a reasoned final ruling.

Topic tags: Court of Justice of the EU · Digital Services Act · Digital Markets Act · Big Tech enforcement
· Advocates General · judicial politics

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Abstract

This simulation places students inside a hypothetical appeal to the Court of Justice of the European Union in the fictional case *European Commission v Meta* (T-55/24). The General Court has ruled for Meta, annulling the Commission's decision on the ground that the supervisory-fee methodology under the Digital Services Act was set by the wrong kind of legal act, and the Commission has appealed. A small organising team sits as the Court of Justice and runs the room; eight further roles are played by small groups, including the European Commission (appellant), Meta (respondent), the Irish delegation, two NGOs on opposite sides, Twitter (X), and two teams of Advocates General (one focused on the Digital Markets Act, one on the Digital Services Act). Parties and interveners make short statements and press releases, the Advocates General hold an information session and cross-examine the two main parties, then deliver a joint non-binding opinion. The Court deliberates in private and issues a reasoned ruling that either upholds the General Court or sides with the Commission, citing its legal bases. The exercise is designed to make the political dimension of judicial decision-making visible: how interveners lobby, how the Advocate General shapes the Court's reasoning, and how the Court balances effective enforcement of EU digital law against the institutional limits on the Commission's powers.

Learning outcomes

By the end of this exercise students will be able to:

- Describe the structure and procedure of the Court of Justice of the EU on appeal, including the distinct roles of the parties, interveners, the Advocates General and the bench.
- Explain the core legal questions in EU digital-market enforcement: the gatekeeper and very-large-online-platform regimes, the supervisory-fee methodology under the Digital Services Act, and the difference between delegated and implementing acts.
- Analyse how interveners, expert input and Advocate General opinions can influence a judicial outcome, and assess what this reveals about judicial politics and the independence of the Court.
- Construct and deliver a concise legal argument grounded in named provisions of the DSA, the DMA and the Treaties, and respond to cross-examination under time pressure.

At a glance

Duration	53 minutes of simulation, plus 15–20 minutes debrief
Class size	24–40 students: eight role groups of roughly 3–5, plus a 2–5 person organising team playing the Court
Room setup	One room; moveable seating with the Court at the front, the two main parties facing the bench, and interveners and the two Advocate General teams to the sides; projector for the running order and timings; a timer visible to all
Materials needed	This instructor guide; the eight role briefs (Appendix B); the shared legal-basis summary (Appendix A1) given to every group; a projected slide with the running order and timings; a written-submission form or paper slips (see Appendix A2); a visible countdown timer
Instructor prep time	45–60 minutes (allocate groups, distribute briefs and the legal-basis summary in advance, set up the written-submission form, draft part of the ruling)
Student prep time	20–30 minutes reading their brief and the shared legal-basis summary beforehand

Pre-class preparation

For the instructor

- The organising team of 2–5 people plays the Court of Justice: it chairs the session, keeps time, distributes materials, answers procedural questions and delivers the final ruling. Nominate one member as the President of the Court to chair, and one as timekeeper. Because a fictional case is used, keep all bench roles generic (the Court, the President of the Court, the Judge-Rapporteur); do not attach the names of real serving judges.
- Divide the rest of the class into eight groups of roughly 3–5 and assign one role each: European Commission, Meta, Irish delegation, NGO supporting Meta, NGO supporting the Commission, Twitter (X), Advocates General (DMA focus), Advocates General (DSA focus). Each group nominates a speaker but should prepare collectively.
- Distribute the relevant role brief (Appendix B) **and** the shared legal-basis summary (Appendix A1) to every group at least a day before class, so all groups work from a consistent statement of the law. The shared summary is important: in earlier runs the single biggest weakness was that groups cited different, inconsistent legal bases, which caused the Advocate General information session to break down. Giving everyone the same one-page grounding fixes this.
- Set up a way to receive short written submissions from the Irish delegation, the two NGOs and Twitter (X) during the cross-examination phase. Create your own online form (any form tool will do)

or simply accept the submissions on paper slips collected by the timekeeper. Do not rely on any pre-existing link.

- Draft part of the final ruling in advance (the framing of the legal question and the two possible dispositions), so the Court can focus on responding to what actually happens in the room rather than composing the whole judgment on the spot.

For students

- Read your role brief and the shared legal-basis summary before class. Come ready to argue your assigned position and set aside your personal views.
- Identify, in advance, which provisions matter most to your role, which other groups are natural allies, and one or two questions you want the Advocates General to put to the other side.

Session plan

The simulation runs to 53 minutes. The scenario: in fictional case T-55/24, the General Court ruled for Meta, holding that the Commission set the Digital Services Act supervisory-fee methodology by an implementing act when Article 43 DSA required a delegated act, and annulled the Commission's fee decision. The Commission has appealed to the Court of Justice. The Court (the organising team) must uphold the General Court or side with the Commission, and give reasons.

Time	Phase	What happens
0:00–0:05	Group briefings	The Court opens the session, states the question on appeal and the running order, then gives all groups a final few minutes to confirm their opening line and speaker. The two Advocate General teams note which arguments to probe.
0:05–0:11	Opening statements	The Commission and Meta each give a formal 1-minute statement (appellant first). The Irish delegation, the two NGOs and Twitter (X) each give a 1-minute press-release statement. The Advocates General take notes on positions. (6 slots, 1 minute each.)
0:11–0:26	AG information session	The two Advocate General teams take expert input from the Irish delegation, the two NGOs and Twitter (X), and may ask them and the two main parties clarifying questions. Interveners use this to press their interests. The Court keeps order and time.
0:26–0:36	Cross-examination	The Advocates General question the Commission and Meta directly, dividing their time between the two (not necessarily equally). Meanwhile the interveners finalise and submit their short written observations (via the form or on paper).
0:36–0:41	AG deliberation	The two Advocate General teams confer and agree a single joint opinion to deliver to the Court.
0:41–0:43	Advocate General opinion	The Advocates General deliver their joint non-binding opinion: the main legal questions, a summary of each side's case, and their recommendation to the Court.
0:43–0:48	Recess	All groups except the Court leave the room. The Court consults the

Time	Phase	What happens
		written submissions and the AG opinion and finalises its ruling.
0:48–0:53	Final ruling	Groups return. The Court delivers a reasoned final ruling, upholding the General Court or siding with the Commission, and states the legal bases on which it rests.

Mechanics and rules

- **The bench is bound by nothing but its reasons.** The Court may follow or depart from the Advocate General opinion, exactly as in real proceedings, but it must give reasons that cite specific provisions (see Appendix A1).
- **Speaker discipline.** Each group nominates one speaker per turn, but any member may prepare questions. Enforce the 1-minute statement limits strictly; there is a lot to cover.
- **Written submissions count.** Tell the interveners at the outset that their written observations will be read during the recess and can influence the ruling. This keeps them engaged through cross-examination.

Debrief and reflection

Allow 15–20 minutes. This is where the judicial-politics lessons land, so protect the time. Group the questions as follows.

Fidelity to real CJEU procedure (surfaces how far the simulation matched reality)

- Did the exercise accurately reflect how a case moves through the Court of Justice? What key elements were present, and what was left out or compressed?
- Having played it, do you now understand the structure of the Court better, in particular how the Advocates General interact with the bench?
- Did you get a feel for the range of parties and interveners who can appear in an appeal, and for how the Commission brings companies to account?

Judicial politics and influence (surfaces the political dimension)

- To what extent did the interveners, the expert input and the AG opinion actually shape the final ruling? Point to a specific moment.
- Where did you see lobbying or strategic positioning by the interveners (Ireland, the NGOs, Twitter)? Did it work?
- The Advocates General are non-binding advisers. Did their opinion carry weight here, and why?

Independence and the Court (surfaces the core conceptual question)

- Based on what you saw, does the Court operate as an independent judiciary applying the Treaties, or is it pulled by national and institutional interests? What in the simulation supports your answer?
- In earlier runs, classmates approached the organising team freely with procedural questions before the session, but kept their distance once that team stood at the front as judges. What does that

instinct tell you about how the authority and detachment of a court are performed rather than just declared?

The substantive law (surfaces the DSA/DMA content)

- Was the General Court right that the supervisory-free methodology needed a delegated act rather than an implementing act? Why does the choice of instrument matter constitutionally?
- If the Court sides with the Commission, what does that mean for the enforceability of the DSA and DMA against very large platforms? If it upholds Meta, what does that mean?

Close by explaining which parts of the procedure were simplified (see Adaptation notes) and pointing students to the further reading in Appendix A4.

Assessment suggestions

The exercise works well ungraded, but if assessment is wanted, keep it light:

- A short individual reflection (300–500 words) answering two or three debrief questions, especially the one on judicial independence.
- A participation mark for staying in role, using the shared legal bases accurately, and engaging with cross-examination.
- For the two Advocate General teams and the Court, a short written version of their opinion or ruling (250–400 words) setting out the legal reasoning, submitted afterwards.

Adaptation notes

- **Scaling down.** With fewer than 24 students, merge or drop the least central roles first: combine the two NGOs into one “civil-society intervener”, then drop Twitter (X). The irreducible core is the Court, the Commission, Meta and at least one Advocate General team. With a very small class, run a single Advocate General team covering both the DMA and DSA angles.
- **Scaling up.** With more than 40 students, do not enlarge groups beyond five; instead add interveners (a second member-state delegation, a consumer-rights body, a rival platform) and give the Court a slightly larger bench. Keep each new role to a one-page brief in the same format.
- **Difficulty.** To sharpen the law, require every statement to cite at least one named provision from the shared summary, and have the Court reject arguments that do not. To make it easier, let the Advocates General pre-agree the two or three questions they will put in cross-examination.
- **Online delivery.** Put each group in its own breakout room for the briefing, run statements and cross-examination in the main room, and collect written submissions through an online form. Send the interveners to breakout rooms during the recess while the Court deliberates on camera.
- **Different topic.** The same structure (parties, interveners, an Advocate General information session, cross-examination, a non-binding opinion, then a reasoned ruling) transfers to any CJEU appeal. Swap the case file and briefs: a state-aid appeal, a data-protection reference, or a free-movement case would all work. Only the legal-basis summary and the briefs need rewriting.

Appendix A: Instructor materials

A1. Shared legal-basis summary (give to every group)

Distribute this one-pager to all groups with their brief. Its purpose is to ensure everyone argues from the same statement of the law. All references are to public EU legal texts; students may quote them briefly with citation. Provisions are summarised for teaching and are not a substitute for the official texts (EUR-Lex).

The case in one paragraph. In fictional case T-55/24, Meta Platforms Ireland challenged the European Commission's decision setting the annual supervisory fee it must pay as a very large online platform under the Digital Services Act. The General Court ruled for Meta, holding that the Commission fixed the fee *methodology* by an implementing act when the DSA required a *delegated* act, and annulled the fee decision. The Commission has appealed to the Court of Justice. The Court on appeal reviews points of law only.

Digital Services Act (DSA): Regulation (EU) 2022/2065

- **Art. 33:** designation of very large online platforms (VLOPs) and very large online search engines (those reaching at least 45 million average monthly active users in the EU); designated platforms carry the heaviest obligations.
- **Art. 34–35:** VLOPs must assess and mitigate systemic risks (for example illegal content, disinformation, effects on fundamental rights).
- **Art. 39–42:** transparency obligations, including on advertising repositories and recommender systems.
- **Art. 43:** the Commission charges VLOPs an annual **supervisory fee** to cover its DSA supervision costs. The fee is based on figures including average monthly active recipients, and the **methodology and procedures for setting it are to be laid down by the Commission in a delegated act**. This is the pivotal provision in T-55/24.

Digital Markets Act (DMA): Regulation (EU) 2022/1925

- **Art. 3:** designation of **gatekeepers** (large platforms meeting size, user and “important gateway” thresholds).
- **Art. 5(2):** a gatekeeper may not combine or cross-use personal data across its services without the user's specific consent; this underpins the “consent or pay” dispute.
- **Art. 6(5):** a gatekeeper must not treat its own services and products more favourably than those of rivals (self-preferencing).
- **Enforcement:** the Commission may impose fines of up to 10% of total worldwide annual turnover (up to 20% for repeated infringements) for breach of the DMA.

The instrument question: delegated vs implementing acts (TFEU)

- **Art. 290 TFEU: delegated acts.** A legislative act may delegate power to the Commission to adopt non-legislative acts of **general application that supplement or amend non-essential elements** of the act. The Parliament and Council control the delegation and can revoke it or object to a given act. Article 43 DSA points here.

- **Art. 291 TFEU: implementing acts.** Where **uniform conditions for implementing** a legally binding act are needed, the Commission (or Council) adopts implementing acts, subject to member-state control (comitology). These do not supplement or amend the parent act.
- **Why it matters in T-55/24.** The core question is whether fixing the supervisory-fee methodology *supplements* the DSA (so it needed a delegated act under Art. 290, as the General Court held) or merely *implements* it under uniform conditions (an implementing act under Art. 291, as the Commission argues). The choice determines who controls the rule and whether the Commission overstepped.

Supporting Treaty bases

- **Art. 114 TFEU:** internal-market harmonisation; the legal base for both the DSA and the DMA.
- **Art. 288 TFEU:** regulations are binding in their entirety and directly applicable in all member states.
- **Art. 5 TEU:** confers proportionality (and subsidiarity): EU action must be suitable and not exceed what is necessary. Interveners raise proportionality against the fee methodology and any penalty.
- **Art. 4(3) TEU:** sincere cooperation between the Union and the member states.
- **Charter of Fundamental Rights:** relevant where parties argue that confidential fee inputs or data practices affect procedural and privacy rights.

A2. Written-submission form (facilitator)

The Irish delegation, both NGOs and Twitter (X) each submit a short written observation during cross-examination, which the Court reads during the recess. Set up **one** of the following before class:

- an online form of your own (any form builder), with fields for the group name, their position (for the Commission / for Meta / neutral) and two or three sentences of observation; or
- printed slips collected by the timekeeper.

Do not use any pre-existing or third-party link. Keep submissions to roughly 60 words so the Court can absorb them in the five-minute recess.

A3. Model ruling outline (facilitator)

Prepare the skeleton below in advance and complete it live. Either disposition is defensible; the teaching point is the quality of the reasoning, not the winner.

- **The question on appeal.** Whether the General Court erred in law in holding that the DSA supervisory-fee methodology had to be set by a delegated act (Art. 290 TFEU / Art. 43 DSA) rather than an implementing act (Art. 291 TFEU).
- **If upholding the General Court (for Meta).** Setting the methodology supplements a non-essential element of the DSA and so falls under Art. 290; by using an implementing act the Commission bypassed Parliament and Council control. The appeal is dismissed. Note the effect on the confidentiality and proportionality points raised.
- **If siding with the Commission.** Fixing a common methodology sets uniform conditions for implementing Art. 43 and falls under Art. 291; the General Court read the delegation too narrowly and undercut effective, consistent enforcement of the DSA against VLOPs (Art. 4(3) TEU, Art. 114 TFEU). The judgment is set aside.

- **Reasoning must cite provisions.** Require at least the Art. 290 vs Art. 291 distinction and Art. 43 DSA, plus any point the AG opinion or written submissions made decisive.

A4. Further reading

- Craig, P. and de Búrca, G. (2020) *EU Law: Text, Cases, and Materials*. 7th edn. Oxford University Press. Chapters on the Court of Justice, and on delegated and implementing acts (Articles 290–291 TFEU).
- Chalmers, D., Davies, G. and Monti, G. (2019) *European Union Law*. 4th edn. Cambridge University Press. On the judicial architecture of the Union and the role of the Advocate General.
- European Commission, *The Digital Services Act package* and *The Digital Markets Act*: official overviews at commission.europa.eu (search “Digital Services Act” and “Digital Markets Act”).
- Regulation (EU) 2022/2065 (DSA) and Regulation (EU) 2022/1925 (DMA), full texts on EUR-Lex (eur-lex.europa.eu).
- On the fee-methodology dispute, follow the General Court and Court of Justice case law on the DSA supervisory fee via the Court’s case-law search (curia.europa.eu); the exercise’s T-55/24 is fictional but modelled on real litigation over Article 43 DSA.

Appendix B: Student handouts and role briefs

Each brief is a separate handout. Distribute it together with the shared legal-basis summary (Appendix A1). Priorities may be exaggerated for the exercise. The case, its number (T-55/24) and all figures are illustrative.

PARTY · APPELLANT

European Commission

You represent the European Commission, guardian of the Treaties and primary enforcer of EU law. The General Court ruled for Meta, annulling your decision, and you have appealed to the Court of Justice. Your task is to persuade the Court that the General Court erred in law and that effective enforcement of EU digital regulation against very large platforms must be preserved.

Your core argument. Fixing a common supervisory-fee methodology for all VLOPs sets uniform conditions for implementing Article 43 DSA, and so was properly done by an implementing act under Article 291 TFEU. The General Court read the delegation requirement too narrowly. A methodology that applies the same way to every platform is implementation, not supplementation of the DSA.

Points to press

- **Delegated vs implementing act.** The methodology does not add non-essential new rules to the DSA; it applies Article 43 uniformly. That is Article 291 territory, not Article 290.
- **Effective enforcement.** Annuling the fee decision undercuts the Commission's ability to supervise VLOPs and weakens the whole DSA regime (Art. 4(3) TEU, sincere cooperation; Art. 114 TFEU, the internal-market base).
- **The wider record.** Meta meets the gatekeeper criteria (Art. 3 DMA), combines user data without valid consent (Art. 5(2) DMA), self-preferences (Art. 6(5) DMA), is a designated VLOP (Art. 33 DSA), and falls short on systemic-risk mitigation and transparency (Arts 34–35, 39–42 DSA). Effective enforcement against Big Tech protects fair competition and consumers.

Coordinate with the NGO supporting your enforcement approach. Your goal is the strongest legal argument, not rhetoric.

Meta

You represent Meta Platforms Ireland, parent of Facebook, Instagram and WhatsApp. You already won at the General Court, which annulled the Commission's supervisory-fee decision. The Commission has appealed; your task is to defend that judgment before the Court of Justice.

Your core argument. Article 43 DSA requires the supervisory-fee methodology to be set by a **delegated act** under Article 290 TFEU, because it supplements the DSA and must remain under Parliament and Council control. By using an **implementing act** instead, the Commission bypassed that control and acted unlawfully. The General Court was right.

Points to press

- **The instrument matters constitutionally.** Only the Parliament and Council can authorise the Commission to supplement or amend legislation (Art. 290 TFEU). The methodology is not mere implementation; it shapes who pays what, so it needed a delegated act.
- **Transparency and rights.** The Commission kept key inputs (for example the “average monthly active users” figures and parts of the procedure) confidential, which raises concerns under the DSA itself and the Charter of Fundamental Rights.
- **Stakes and proportionality.** DSA fines can reach up to 6% of annual global revenue (illustratively around 9.8 billion US dollars for Meta). A penalty and a methodology of this scale must respect proportionality (Art. 5 TEU).

Work with groups whose interests align with yours (potentially the Irish delegation and the NGO supporting your position). Communication with the Advocates General is key, as they advise the Court directly.

Irish delegation

You are delegates for the Irish government. You supported Meta at first instance. Meta's European headquarters are in Dublin; the company employs thousands in Ireland and contributes substantially to an FDI-driven economy. A ruling for the Commission (illustratively costing Meta around 9.8 billion US dollars) could unsettle the multinationals Ireland hosts.

Your position. You want a stable outcome that does not overly harm Meta or spook other big-tech firms, while still upholding EU and Irish law. You are alert to domestic criticism that the state is over-reliant on FDI and too soft on non-compliance, so you cannot appear to place Meta above the law.

Points to make

- The General Court annulled the fee decision for a genuine **procedural** defect: the methodology should have been set by a delegated act (Art. 43 DSA), consistent with proportionality (Art. 5 TEU), so the Commission must follow correct procedure.
- Ireland already regulates online safety domestically: the Online Safety and Media Regulation Act 2022 established Coimisiún na Meán as online-safety regulator, with supervisory costs met by the Irish state. National regulation is functioning.
- The Union still depends on member states and institutions cooperating sincerely (Art. 4(3) TEU) and on regulations being applied consistently (Art. 288 TFEU).

Nominate a speaker for a 1-minute press-release statement, then put your stance to the Advocates General and submit a short written observation.

NGO supporting Meta

You are a digital-rights and innovation NGO that supports Meta's position. Your objective is to argue that the Court should annul or reduce the penalty and constrain the Commission's power, to keep a workable balance between regulation and innovation.

Points to make

- **Legal certainty.** The DMA is new and largely untested; large fines for practices that are not yet well defined create uncertainty for every digital firm.
- **Proportionality and over-deterrence.** Fines should track actual harm, not serve a purely punitive or signalling role (Art. 5 TEU).
- **User choice and viable models.** The Commission should not force a "minimal-data, free service" model if that degrades service quality or makes the business unsustainable.
- **Institutional role.** The Commission is a competition and internal-market body, not a data-protection authority; the Court should check its assumptions about data practices carefully.
- **Slippery slope.** An expansive decision could invite similar enforcement well beyond gatekeepers, chilling newer digital markets.

Emphasise clear, predictable rules so firms can invest without excessive regulatory risk, and flag any ambiguities in the Commission's reasoning. Nominate a speaker for a 1-minute press release and submit a short written observation during cross-examination.

NGO supporting the Commission

You are a digital-fairness, privacy and consumer-protection NGO that supports the Commission's enforcement approach. Your objective is to defend the Commission's power to sanction gatekeepers under the DMA and to highlight the risks of Meta's model.

Points to make

- **Enforcement is mandatory, not optional.** The DMA empowers the Commission to act when gatekeepers fail their obligations (Art. 3 DMA and following). Without credible remedies, including fines, the DMA loses its deterrent value.
- **Consumer protection and market integrity.** Gatekeepers hold asymmetric power over users and rivals; the Commission must intervene against practices such as unconsented cross-service data combination (Art. 5(2) DMA) and self-preferencing (Art. 6(5) DMA).
- **Proportionate penalties.** A penalty of this size is moderate relative to Meta's scale and justified by the seriousness of multi-service data combination; robust fines are a known feature of EU enforcement.
- **Respect Commission expertise.** The Court should not re-weigh every technical and economic assumption; it remains the check on overreach, but annulling enforcement entirely would gut the DMA's effect.

Challenge Meta's innovation and flexibility claims where they conflict with user rights or fair markets. Nominate a speaker for a 1-minute press release and submit a short written observation during cross-examination.

Twitter (X)

You represent Twitter (X), a close competitor of Meta and itself a very large online platform. Your task is to form a collective stance on whether X would benefit from a ruling for the Commission or for Meta, then work the room to advance your interest.

Background

- As a direct rival, X is materially affected by the appeal's outcome.
- A ruling for Meta suggests VLOPs can influence how EU secondary legislation is applied to them, which cuts both ways for X.
- X has itself been found in breach of the DSA (illustratively, no fine imposed to date), so it is exposed. DSA fines can reach up to 6% of global annual revenue (illustratively around 150 million US dollars for X).
- Wider politics: some figures have framed EU enforcement as a risk to EU–US relations, and there have been public tensions between the Commission and X's leadership over regulatory control and free speech.

Strategy

- **Cautious approach.** Steer attention away from your own DSA exposure; present yourself as a legitimate player who wants clearer, more predictable DSA and DMA rules.
- **The negotiator.** Use your standing as a VLOP to build alliances and try to influence the Advocate General opinion, since the Advocates General have the ear of the Court. You may float alternative remedies to look cooperative and position X as a middle ground between Meta and the Commission.

Nominate a speaker for a 1-minute press release, put your view to the Advocates General, and submit a short written observation. Use the form or paper slips your instructor provides; do not use any external link.

Advocates General (DMA focus)

You act as Advocates General in *Commission v Meta*, focusing on the **Digital Markets Act**. Advocates General are impartial advisers to the Court: you deliver a reasoned, non-binding opinion. Your job is to evaluate the arguments fairly, not to decide guilt.

Questions to work through

- Has Meta abused its position as a digital gatekeeper (Art. 3 DMA)?
- Are Meta's data-combination and cross-platform practices compatible with the DMA's fairness and consent rules (Art. 5(2)) and its ban on self-preferencing (Art. 6(5))?
- What remedy would be proportionate under EU law (Art. 5 TEU)?

How to run your part

- In the information session, hear the Commission and Meta and take expert input from the Irish delegation, the two NGOs and Twitter (X); ask clarifying questions.
- In cross-examination, put focused questions to the Commission and Meta, dividing your time between them (not necessarily equally).
- Confer with the DSA-focused team and agree **one joint opinion**.

Your opinion should identify the main competition-law questions, summarise each side's legal and economic arguments, and give your independent recommendation to the Court. Show command of market regulation and the EU's approach to digital competition.

Advocates General (DSA focus)

You act as Advocates General in the same case, focusing on the **Digital Services Act**, including the supervisory-fee methodology at the heart of the appeal. Advocates General are impartial advisers: you deliver a reasoned, non-binding opinion. Your job is to assess whether Meta's practices and the Commission's conduct align with the accountability, safety and transparency the DSA represents.

Questions to work through

- Was the supervisory-fee methodology properly set? Did Article 43 DSA require a **delegated act** (Art. 290 TFEU) as the General Court held, or did an **implementing act** (Art. 291 TFEU) suffice, as the Commission argues? This is the pivotal legal question on appeal.
- Has Meta met its transparency and systemic-risk obligations as a VLOP (Arts 33–35, 39–42 DSA)?
- Has the Commission respected transparency and proportionality, given the confidentiality of some fee inputs (Charter; Art. 5 TEU)?

How to run your part

- In the information session, hear both parties and take expert input from the interveners; ask clarifying questions.
- In cross-examination, put focused questions to the Commission and Meta, dividing your time between them.
- Confer with the DMA-focused team and agree **one joint opinion**.

Your opinion should identify the key legal and regulatory questions under the DSA (above all the delegated vs implementing-act point), summarise the competing arguments and legal context, and give your impartial recommendation to the Court.